Proposed addition to Town of Eliot Code Ordinances; Data Center Moratorium Ordinance (chapter and section to be assigned by Town Clerk & Municode)

TOWN OF ELIOT, MAINE

DATA CENTER MORATORIUM ORDINANCE

WHEREAS, the Town of Eliot is a town-meeting municipality whose legislative body is the Town Meeting (Charter §§ 1.5, 2.11), and the Select Board, after due consideration, proposes this Ordinance for enactment by the voters and finds pursuant to 30-A M.R.S. § 4356 as follows:

WHEREAS, there has been a recent increase in proposals to develop large-scale data centers within the State of Maine, and several Maine municipalities have adopted or are considering temporary moratoria in response;

WHEREAS, data centers consume disproportionate amounts of water and electrical energy, often equivalent to that used by tens of thousands of homes;

WHEREAS, data centers are known to strain local energy grids and can result in an increase in residential utility costs;

WHEREAS, data centers can create noise pollution and heat islands, require large amounts of water to function, and may involve backup generation and on-site fuel storage, with significant environmental impacts;

WHEREAS, the Town's existing Land Use Ordinance — including the provisions currently under review that would allow data centers in the Commercial/Industrial district by Planning Board site plan review with no size or power limit and without performance standards specific to the intensity of such uses — and other available Town codes and regulations are inadequate to prevent the serious public harm that may result from the development of data centers in the Town, or to provide for the effective review and regulation of the location and operation of data centers in the Town;

WHEREAS, the development of data centers within the Town, without appropriate ordinance and regulatory standards, is likely to result in an overburdening of Town resources and public facilities, including electrical supply and grid capacity and public water service provided through the Kittery Water District;

WHEREAS, the Town requires at least 180 days to gather information regarding the potential effect of data centers on the local energy grid, public water supply, public health and environment, and to develop and implement ordinances and regulations necessary to address this new type of development pressure and protect the public health, safety, and welfare of the Town's residents; and

WHEREAS, the Select Board finds that the foregoing facts necessitate a temporary moratorium on data centers under both 30-A M.R.S. § 4356(1)(A) (to prevent a shortage or overburden of public facilities reasonably foreseeable from anticipated development) and § 4356(1)(B) (because existing plans, ordinances, and other applicable laws are inadequate to prevent serious public harm from commercial and industrial development in the affected area).

NOW, THEREFORE, be it ordained by the Town of Eliot as follows:

1. Enactment and declaration. This Data Center Moratorium ("Moratorium") is enacted pursuant to the home rule authority of 30-A M.R.S. § 3001, the moratorium authority of 30-A M.R.S. § 4356, and the enactment procedure of 30-A M.R.S. § 3002 and Charter § 2.11. The Town hereby declares a moratorium on the siting, permitting, construction, and operation of data centers within the Town of Eliot.

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2. Definition. For the purposes of this Moratorium, "data center" means any facility, whether a freestanding structure or a facility within a larger structure, that primarily contains electronic equipment used to process, store, and transmit digital information and that uses environmental control equipment to maintain the proper conditions for the operation of that equipment, together with associated cooling, electrical, backup power, and fuel-storage infrastructure. The term includes, without limitation, enterprise, colocation, cloud, cryptocurrency-mining, and high-performance or artificial-intelligence computing facilities, of any size. It does not include electronic or server equipment that is accessory and incidental to a lawfully permitted principal use on the same lot.

3. Moratorium. During the effective period of this Moratorium, no official, officer, board, or agency of the Town of Eliot shall accept, process, approve, deny, or in any other way act upon any application or request for any type of permit or approval relating to the siting, permitting, construction, installation, expansion, or operation of a data center of any size anywhere within the Town of Eliot.

4. Term and extension. This Moratorium shall take effect as provided in paragraph 5 and shall remain in effect for one hundred eighty (180) days from its effective date, unless earlier repealed or modified by ordinance or superseded by the adoption of permanent standards, for the express purpose of drafting amendments to the Eliot Land Use Ordinance and other Town codes and regulations to establish appropriate standards for the siting, permitting, construction, and operation of data centers. The Moratorium may be extended for additional 180-day periods in accordance with 30-A M.R.S. § 4356(2); consistent with 30-A M.R.S. § 4356(3), the Select Board may extend the Moratorium after notice and hearing.

5. Effective date. This Moratorium shall take effect upon its enactment by the voters — at the November 3, 2026 election - as certified by the Town Clerk, and, consistent with Charter § 2.11, seven (7) days after adoption unless otherwise specified herein.

6. Retroactivity. Notwithstanding 1 M.R.S. § 302 or any law to the contrary, and regardless of the date of its enactment, this Moratorium shall apply to any and all proceedings or applications relating to data centers filed on or after the date of its enactment.

7. Enforcement. If any data center is sited, constructed, or operated within the Town in violation of this Moratorium, each day of such violation shall constitute a separate violation. The Town's Code Enforcement Officer is authorized to pursue any and all remedies available under 30-A M.R.S. § 4452, including fines and penalties, injunctive relief, and reasonable attorneys' fees and costs to enforce this Moratorium.

8. Conflict and severability. Any of the Town's ordinances that are inconsistent or in conflict with this Moratorium are repealed to the extent applicable for the duration of the Moratorium. If any section or provision of this Moratorium is declared by a court of competent jurisdiction to be invalid, that declaration shall not invalidate any other section or provision.

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Municipal Officers' Certification of Official Text of Proposed Ordinance

To the Town Clerk of the Town of Eliot, Maine:

We hereby certify to you that the document to which we have affixed this certificate is a true copy of the official text of an ordinance entitled "Proposed addition to Town of Eliot Code of Ordinances; "Data Center Moratorium (chapter and Section to be Assigned by Town Clerk and Municode)"
which is to be presented to the voters for their consideration on November 3, 2026.

Pursuant to 30-A M.R.S.A § 3002(2), you will retain this copy of the complete text of the ordinance as a public record and make other copies available for distribution to the voters, and you will ensure that copies are available at the town meeting/polling places on the day of the vote.

Vote of the Select Board (August 27, 2026)

William Widi, Chair

Lauren Dow, Vice Chair

B. Cabot Trott, Secretary

Alexandros Orestis

Christine Bennett

Select Board
Town of Eliot, Maine